

#	Case Name	Tentative
50.	Daichendt v. Aviation Consultants, Inc. 2023-01306989	Defendant ACI Jet Orange County, LLC's motion for Sanctions pursuant to Code Civ. Proc. §128.7 is DENIED. Moving Defendant seeks sanctions against Plaintiff Joseph Daichendt arising out of Daichendt's filing of a Motion for Reconsideration of the Court's 11/18/25 Order regarding the Parties' cross Motions for Summary Adjudication. Moving Defendant has complied with the safe harbor provision by serving a copy of the notice of motion and moving papers to Daichendt more than 21 days before the filing of the motion. (See Code Civ. Proc. §128.7, subd. (c); see also ROA 1271 [Proof of Service on Daichendt dated 1/29/26] and ROA 1273 [Motion for sanctions filed 2/24/26].) However, Moving Defendant has failed to show that Daichendt's motion was frivolous under the law so as to support an award of sanctions under Code Civ. Proc. §128.7. "A claim is factually frivolous if it is 'not well grounded in fact' and is legally frivolous if it is 'not warranted by existing law or a good faith argument for the extension, modification, or reversal of existing law.' [Citation.] In either case, to obtain sanctions, the moving party must show the party's conduct in asserting the claim was objectively unreasonable. [Citation.] A claim is objectively unreasonable if 'any reasonable attorney would agree that [it] is totally and completely without merit.'" (<i>Bucur v. Ahmad</i> (2016) 244 Cal.App.4th 175, 189.) Here, Moving Defendant has failed to show that the motion for reconsideration was so legally frivolous that it was objectively unreasonable to file the motion. Even though Plaintiff did not prevail on the merits of the motion for reconsideration, Plaintiff has articulated a reasonable ground to file the motion -- to ensure that the record is complete in the event of an appeal. Sanctions pursuant to Code Civ. Proc. §128.7 "should be utilized only in 'the rare and exceptional case where the action is clearly frivolous, legally unreasonable or without legal foundation, or brought for an improper purpose.'" (<i>Kumar v. Ramsey</i> (2021) 71 Cal.App.5th 1110, 1120-1121.) Moving Defendant has not satisfied this standard. Plaintiff shall provide notice of this ruling.

51.	Horste v. SC Investments LLC 2023-01302494	Attorney Ali Kamarei and Auto Legal Group, LLC's motion to be relieved as counsel of record for defendant/cross-complainant SC Investments, LLC is GRANTED as it relates to this forum, effective upon the filing of the proof of service of the signed order upon the client. A status conference is set for July 24, 2026 at 9:00 a.m. in Department C28. As SC Investments, LLC cannot appear in this court without counsel, it shall appear the scheduled date with new counsel. (See CLD Construction, Inc. v. City of San Ramon (2004) 120 Cal.App.4th 1141, 1145.) Failure to do so will result in the imposition of sanctions against SC Investments, LLC. Moving Attorney shall provide notice of this ruling.
52.	Jimenez v. Richardson 2025-01519604	Defendant Swish Studios, LLC's (Swish) demurrer to complaint is SUSTAINED, with 10 days leave to amend. <u>7th-9th causes of action for negligent hiring, supervision, and retention.</u> The complaint fails to state facts sufficient to constitute the 7th, 8th, and 9th causes of action for negligent hiring, supervision, and retention. (See CACI No. 426 [elements]; <i>Phillips v. TLC Plumbing, Inc.</i> (2009) 172 Cal.App.4th 1133, 1139-1140 [liability for negligent hiring, supervision, and/or retention is one of direct liability for negligence, not vicarious liability; "[n]egligence liability will be imposed on an employer if it 'knew or should have known that hiring the employee created a particular risk or hazard and that particular harm materializes' "; <i>Z.V. v. County of Riverside</i> (2015) 238 Cal.App.4th 889, 902 [plaintiff must establish the employer had prior knowledge of the actor's propensity to do the bad act].) While the complaint alleges "[defendant Darnell K.] Richardson had a known criminal record prior to his employment, which a background check would have revealed" (Compl. ¶ 12), not all criminal histories show a predisposition to commit violent attacks. <u>10th cause of action, negligent infliction of emotional distress (NIED).</u> The complaint fails to state facts sufficient to constitute the 10th cause of action for NIED. (See <i>Burgess v. Superior Court</i> (1992) 2 Cal.4th 1064, 1071-1074 [a cause of action for NIED is not an independent tort but simply the tort of negligence, the elements of which are the existence of a duty, breach, causation, and damages].) <u>11th cause of action, vicarious liability.</u> The complaint fails to state facts sufficient to allege vicarious liability. Specifically, it fails to allege facts sufficient to show Richardson was acting